



Prepare 50% Faster

Study Notes

THE INDUSTRIAL RELATIONS CODE, 2020 Part 2

Notice of Change (Ch V)

SECTION 40 – Notice of Change

→ Notification and Procedure:

- ◆ Employers must follow specific procedures when proposing changes in conditions of service related to matters mentioned in the Third Schedule.
- ◆ This includes notifying the workers who will be affected by the proposed changes.

→ Twenty-One Days Notice Period: Employers are generally prohibited from implementing the changes within **twenty-one** days of giving such notice.

→ Exceptions to the Rule: There are exceptions to this rule, including:

- Changes made based on settlements or awards
- Changes for certain categories of workers covered by specific rules or regulations

→ These procedures and exceptions ensure that changes in conditions of service are carried out fairly and with consideration for the rights and interests of the workers.

SECTION 41 – Power of appropriate government to exempt

If the appropriate Government believes that applying these provisions to a particular class of industrial establishments or workers could severely impact the employers and industry, it may issue a notification exempting or subjecting them to these rules with specified conditions.

Voluntary Reference of Disputes to Arbitration (Ch VI)

SECTION 42 – Voluntary Reference of disputes to arbitration

- **Arbitration Agreement** : Employers and workers can resolve industrial disputes through arbitration by signing a written agreement specifying the arbitrator(s).
- **Handling Even Number of Arbitrators** : If an even number of arbitrators are chosen, an umpire is designated to break ties.
- **Agreement Format and Notification** : The agreement must follow a prescribed format, and a copy is sent to the appropriate Government and conciliation officer.
- **Government Notification** : If the Government finds that the majority of parties involved agree, it may issue a notification, allowing others affected by the dispute to present their case before the arbitrator(s).
- **Representation** : Representation depends on the nature of the dispute, involving negotiating unions, trade unions, or chosen representatives.

Mechanism for Resolution of Industrial Disputes (Ch VII)

SECTION 43 – Conciliation Offers

The appropriate Government can appoint **conciliation officers** through a notification to mediate and facilitate the resolution of industrial disputes. These officers can be designated for specific areas or industries, either on a permanent or temporary basis.

SECTION 44 – Industrial Tribunal

- **Establishment of Industrial Tribunals:** The appropriate Government has the authority to establish Industrial Tribunals through official notifications. These tribunals are responsible for addressing industrial disputes and related matters.
- **Composition of Tribunals:** Industrial Tribunals consist of two members, typically one Judicial Member and one Administrative Member (person at post of Joint Secretary or above).
- **Designation of Cases:** Cases related to various industrial disputes, including workman dismissals and Trade Union disputes, are designated to specific tribunal benches. Each bench comprises a Judicial Member and an Administrative Member, with the Judicial Member serving as the presiding officer.
- **Cases which require a bench of both Judicial Member and Administrative Member:**
 - ◆ Application and interpretation of standing order
 - ◆ Discharge or dismissal of workmen including reinstatement of, or grant of relief to, workmen dismissed
 - ◆ Illegality or otherwise of a strike or lockout
 - ◆ retrenchment of workmen and closure of establishment
 - ◆ Trade Union disputes

Remaining cases shall be entertained and decided by the bench consisting either a Judicial Member or an Administrative Member.

SECTION 46 – National Industrial Tribunal

- **Establishment of National Industrial Tribunals:** The Central Government has the authority to establish National Industrial Tribunals.
- **Composition of Tribunals:** Each National Industrial Tribunal comprises a Judicial Member, who is required to be a former High Court Judge, and an Administrative Member, who has been Secretary to Government of India or its equivalent.
- **Presiding Officer:** The Judicial Member presides over the tribunal.

SECTION 47 – Decision of Tribunal or National Industrial Tribunal

- The decision of Tribunal or National Industrial Tribunal shall be **by consensus of members**.
- If members disagree on certain points, they refer these points to the appropriate Government.
- Appropriate government will appoint Judicial Member of other Tribunal to hear these points and decision shall be taken by majority

SECTION 48 – Disqualification of members of Tribunal and National Industrial Tribunal

- No one can be appointed or serve as a member of a Tribunal or National Industrial Tribunal if they:
 - Are not an independent person, or
 - Have reached the age of sixty-five

- An independent person" is someone who is not linked to the industrial dispute in question or any industry directly impacted by that dispute.

SECTION 49 - Procedure and powers of arbitrator, conciliation officer, Tribunal and National Industrial Tribunal

- Arbitrators, conciliation officers, and Industrial Tribunals follow procedures as per the Code and relevant rules.
- **Powers Similar to Civil Courts:** They possess powers similar to civil courts, including:
 - Enforcing attendance
 - Compelling document production
 - Conducting inquiries
- The costs of proceedings are determined at their discretion and can be recovered as arrears of land revenue.
- Awards, orders, or settlements made by these bodies are executed following civil court procedures.

SECTION 50 - Powers of Tribunal and National Industrial Tribunal to give appropriate relief in case of discharge or dismissal of worker

- **Unjustified Termination:** If a Tribunal or National Industrial Tribunal, during adjudication proceedings, finds that the termination of a worker was unjustified, it can take the following actions:
 - Order reinstatement with specific terms
 - Provide other suitable relief to the worker
- **Interim Relief:**
 - ◆ Additionally, the Tribunal has the authority to grant interim relief to the worker during the pendency of the dispute.
 - ◆ The Tribunal can rely solely on the materials on record without considering fresh evidence when deciding on interim relief.

SECTION 51 – Transfer of Pending Cases

- **Transfer of Pending Cases:** Upon the commencement of this Code, cases pending in the Labour Court, Tribunal, or National Tribunal established under the Industrial Disputes Act, 1947, shall be transferred to the Tribunal or National Industrial Tribunal under this Code.
- **Handling of Transferred Cases:**
 - ◆ The transferred cases may be dealt with either:
 - De novo (starting afresh),
 - From the stage at which they were pending before the transfer
 - ◆ The decision on how to handle transferred cases is at the discretion of the Tribunal or National Industrial Tribunal

SECTION 53 – Conciliation and Adjudication of Disputes

- **Role of Conciliation Officers:** When an industrial dispute arises or is anticipated, or when a notice under section 62 is issued, a conciliation officer will initiate proceedings.
 - ✓ The conciliation officer's role includes diligently investigating the dispute, encouraging parties to reach an amicable settlement, and reporting any settlement.
 - ◆ If no settlement is reached, the conciliation officer must provide a detailed report to the concerned parties and the appropriate Government.
- **Timeframe for Conciliation:**
 - ◆ The conciliation officer must submit the report within forty-five days of commencing conciliation, with a shorter period for notice under section 62.
- **Application to the Tribunal:**
 - ◆ If no settlement is achieved, parties have ninety days from the report's receipt to apply to the Tribunal for resolution of the industrial dispute.
- **Transition of Presiding Officers:**
 - ◆ A presiding officer from a previously existing Labour Court, Tribunal, or National Tribunal under the Industrial Disputes Act, 1947, can continue as the Judicial Member of the corresponding Tribunal or National Industrial Tribunal under this Code.

SECTION 54 – Reference and functions of National Industrial Tribunal

- **Referral of Dispute by the Central Government:** The Central Government has the authority to refer an industrial dispute to a National Industrial Tribunal if it deems the dispute to involve questions of national importance or if it is likely to affect industrial establishments across multiple states.
- **Responsibilities of the National Industrial Tribunal:** When such a dispute is referred or transferred by the Central Government to a National Industrial Tribunal, the tribunal is obligated to conduct proceedings promptly.
- **Submission of Award:** The National Industrial Tribunal must submit its award to the Central Government within the specified time frame as per the referral or transfer order, or any extension granted by the Central Government.

SECTION 55 – Form of award, its communication and commencement

- Awards issued by Tribunals, whether composed of both a Judicial Member and an Administrative Member, a single Judicial Member, or a single Administrative Member, must be in written form and bear the signatures of either or both members, as applicable.
- **Communication of Awards:** These awards are communicated to the parties involved and the relevant Government.
- **Enforceability of Awards:** An award becomes enforceable 30 days after its communication unless prevented by the appropriate Government or Central Government.
- **Grounds for Prevention:** The appropriate Government or Central Government can prevent the enforceability of an award on grounds of national economy or social justice.

- **Review and Modification:** In such cases, they have **90 days** from the award's communication to either reject or modify it. The modified award becomes enforceable **15 days** after being presented to the legislature or Parliament if necessary changes are made.
- **Default Enforceability:** If no order is issued within the specified timeframe, the original award becomes enforceable after **90 days**.

SECTION 56 – Payment of Full Wages to worker pending proceedings in higher courts

- If a Tribunal or National Industrial Tribunal orders a worker's reinstatement, and the employer appeals to a High Court or the Supreme Court, the employer must pay the worker their full wages during the legal proceedings.
- **Conditions for Payment:** However, this payment is conditional:
 - The worker can't be employed elsewhere during this time.
 - The worker must provide an affidavit to that effect.
- **Proof of Alternative Employment:** If it's proven that the worker was employed and earning adequate income during this period, no wages are payable for that duration.

SECTION 57 – Persons on whom settlements and awards are binding

- **Binding Nature:** Settlements agreed upon by employers and workers outside of conciliation proceedings, as well as enforceable arbitration awards and settlements reached during conciliation proceedings or awards from Tribunals or National Industrial Tribunals, are binding on the following parties:
 - ◆ The parties directly involved in the dispute.
 - ◆ Any summoned parties (unless summoned without proper cause).
 - ◆ Extend to: Heirs; Successors; Assigns (for employers); All current and future employees (for workers) in the relevant establishment or part thereof

SECTION 58 – Period of Operation of Settlement and Rewards

Settlements	Awards
Effective Period: Settlements become effective upon agreement or signing. Duration: Settlements are binding for the agreed period or six months if unspecified. Continued Binding: Settlements continue to be binding until a party provides a written notice of termination. Notice Period: The notice of termination becomes effective sixty days after it is provided.	Effective Period: Awards typically last for one year from the date of enforceability. Government Adjustment: The government has the authority to adjust the duration of awards. Termination: Awards remain in effect until terminated with a sixty-day notice by a majority party.

SECTION 59 – Recovery of money due from employer

- **Recovery of Owed Money:** Workers to whom money is owed by an employer, whether from a settlement, award, or chapters IX or X of the Code, can apply to the appropriate Government for recovery, within 1 year from the due date.

- If the Government confirms the debt, it issues a certificate to the Collector, who is responsible for recovering it in a manner similar to land revenue.
- **Dispute Resolution:** Disputes over the owed amount or benefits can be decided by a designated Tribunal.
 - ◆ The Tribunal typically resolves disputes within three months, although this period can be extended with reasons.
- A Commissioner may assess benefit values if necessary.
- **Government's Role in Recovery:** The Tribunal's decision is sent to the Government for the purpose of initiating the recovery process.
- **Group Applications:** One application can cover multiple workers with similar claims, streamlining the process for workers seeking recovery.

SECTION 60 – Commencement and Conclusion of Proceedings

Conciliation Proceedings	Arbitration, Tribunal, or National Industrial Tribunal Proceedings
Commencement: Conciliation proceedings begin when the conciliation officer holds the first meeting after receiving notice of a strike or lockout.	Commencement: Arbitration, Tribunal, or National Industrial Tribunal proceedings start on the application or reference date.
Conclusion: Conciliation proceedings conclude with one of the following outcomes: • A signed settlement memorandum. • A recorded failure of conciliation. • A reference to a National Industrial Tribunal.	Conclusion: These proceedings end when the award becomes enforceable.

SECTION 61 – Certain matters to be kept confidential

Information obtained during investigations or inquiries concerning a Trade Union or an individual business, must remain confidential upon written request by the respective Trade Union, person, firm, or company. Unauthorized disclosure is prohibited, except when required for prosecution under section 193 of the Indian Penal Code.

Strikes and Lockouts (Ch VIII)

SECTION 62 – Prohibition of Strikes and Lock-outs

- Workers in industrial establishments cannot go on strike or employers cannot declare lock-outs without **proper notice**.
- The **notice period for strikes and lock-outs is 60 days**.
- Strike or Lock-out cannot start **within 14 days** of giving such notice or before the expiry of date specified in the notice.
- Strikes or lock-outs cannot occur during conciliation, tribunal proceedings, or within 60 days after their conclusion.
- No notice is needed **when there's already a strike or lock-out in progress**.

- **Notification Requirement:** Employers must notify the appropriate authority when there's an ongoing strike or lock-out.
- Employers must report the notices they receive or give within five days to the appropriate Government and the conciliation officer.

SECTION 63 – Illegal Strikes and Lock-outs

- A strike or lock-out is considered illegal if it begins in violation of the provisions outlined in section 62 or if it persists against an order issued under section 42(7).
- **Legal Initiation and Ongoing Disputes**
 - ◆ If a strike or lock-out was initiated in compliance with the law and is ongoing when an application regarding the industrial dispute is filed with the Tribunal or when the dispute is referred to an arbitrator or National Industrial Tribunal, it won't be deemed illegal.
- **Exceptions**
 - ◆ Additionally, a lock-out resulting from an illegal strike or a strike arising from an illegal lock-out is not considered illegal.

SECTION 64 - Prohibition of financial aid to illegal strikes or lock-outs.

It is prohibited to knowingly use or allocate funds to directly promote or support any illegal strike or lock-out.

Lay-off, Retrenchment and closure (Ch IX)

SECTION 65 – Application of Section 67 to 69

- **Exemptions for Certain Industrial Establishments :** Sections 67 to 69 do not apply to industrial establishments covered by Chapter X, those with fewer than fifty workers on average per working day in the preceding calendar month, or those with seasonal or intermittent work.
- The determination of whether an industrial establishment has seasonal or intermittent work is made by the appropriate Government, and its decision is final.

SECTION 66 – Definition of Continuous Service

- **Definition of Continuous Service :** Continuous service for a worker means uninterrupted employment, even during sickness, authorized leave, accidents, legal strikes, lock-outs, or non-fault work stoppages.
- **Criteria for Continuous Service :** If a worker hasn't had continuous service for one year or six months, they can still be considered to have it if
 - ✓ In a period of 12 months, the worker has worked for 240 days (190 days in case of mine)
 - ✓ In a period of 6 months, the worker has worked for 120 days (95 days in case of mine)

- **Inclusive of Leave Days** : These calculations also include days off due to various reasons, such as maternity leave for female workers, laid-off under an agreement, leave on full wages, absent due to temporary disablement caused in course of employment.

SECTION 67 – Rights of workers laid- off for compensation etc.

- **Compensation for Laid-Off Workers** : When a worker with over one year of continuous service in an industrial establishment is laid off (except badli or casual workers), the employer must compensate them for laid-off days, paying 50% of their total basic wages and dearness allowance.
- **Compensation Duration** : If laid off for more than 45 days in a year, compensation stops unless agreed otherwise.
- **Retrenchment Option** : After 45 days, the employer can retrench the worker under Section 70, and previous lay-off compensation can offset retrenchment compensation.
- **Badli Worker Status** : "Badli worker" status ends after one year of continuous service.

SECTION 68 – Duty of employee to maintain muster rolls

Even if workers are laid off, employers must maintain a muster roll and allow workers to make entries when they come to work during regular hours.

SECTION 69 – Workers not entitled for compensation

- **No compensation shall be paid to the worker on lay-off if,**
 - ◆ they refuse suitable alternative employment within the same establishment or nearby, offering equivalent wages and not requiring special skills.
 - ◆ if a worker does not report for work at least once a day during regular working hours or
 - ◆ if the lay-off occurs due to a strike or production slowdown initiated by workers in another section of the establishment.

SECTION 70 – Conditions Precedent to Retrenchment of Workers

- **Conditions for Retrenchment** : Workers in industries with at least one year of continuous service under an employer cannot be retrenched without adhering to specific conditions.
- **Notice or Wages in Lieu** : These conditions include providing **one month's written notice or wages in lieu of notice.**
- **Compensation Calculation** : Paying compensation equal to **fifteen days of average pay** for each completed year of service or part thereof beyond six months.
- **Notification Requirement** : And notifying the appropriate Government or designated authority as prescribed.

SECTION 71 – Procedure for retrenchment

In cases of retrenchment of workers in a specific category, the employer should generally lay off the **most recently employed worker in that category**, unless they have valid reasons to choose another worker, which must be documented.

SECTION 72 – Re-employment of retrenched workers

If an employer plans to hire someone within a year after retrenching a worker, Indian citizens among the retrenched workers must be given the chance to apply for re-employment and will be prioritized over other candidates, as per prescribed procedures.

SECTION 73 – Compensation to workers in case of transfer of establishment

When an establishment changes ownership or management, and a worker has served continuously for at least one year before the transfer, they have rights similar to those being retrenched. This doesn't apply if their service isn't interrupted, the new terms are not less favorable, and the new employer is legally responsible for continuous service compensation in case of retrenchment.

SECTION 74 – Sixty day's notice to be given of intention to close down any undertaking

An employer planning to close down an undertaking must give a **60-day notice** to the appropriate Government, explaining the reasons for the closure, except in cases involving industrial establishments with fewer than fifty workers or those involved in construction projects.

SECTION 75 – Compensation to workers in case of closing down of undertakings

- **Closure of Establishment** : When an establishment is closed down, workers with at least one year of continuous service before closure are entitled to notice and compensation similar to retrenchment.
- **Compensation in Uncontrollable Circumstances** : However, if the closure is due to uncontrollable circumstances, compensation is limited to three months' average pay.
- **Excluded Reasons** : Certain reasons like financial issues, stock accumulation, lease/license expiry, or mineral depletion in mining operations do not qualify as uncontrollable.
- **Mining Closure and Alternative Employment** : For mining closures due to mineral exhaustion, workers can be offered alternative employment within 20 kilometers, with similar terms, preventing compensation.
- **Construction Projects Duration** : In construction projects, if completed within two years from setup, workers aren't entitled to compensation.
- **Compensation for Extended Projects** : But if the project extends beyond two years, they can receive notice and compensation for each completed year of continuous service exceeding six months.

Special Provision Related to Lay-off, Retrenchment and closure (Ch X)

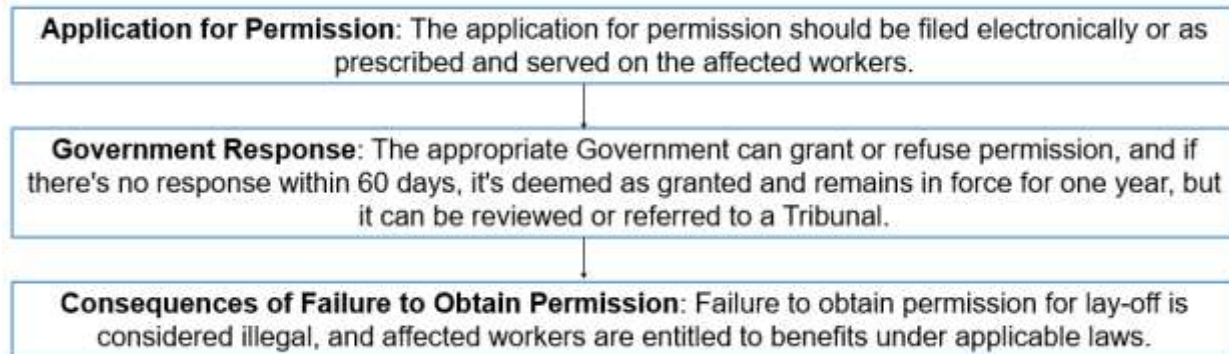
SECTION 77 – Application of this Chapter

- This Chapter applies to industrial establishments **with at least three hundred workers** (or a higher number set by the appropriate Government) on average per working day in the past year, excluding seasonal or intermittent work establishments.

- The appropriate Government makes the final decision on whether an establishment falls into these categories.
- **Industrial establishments include** factories, mines, and plantations as defined in relevant labor laws.

SECTION 78: Conditions and Procedures for Lay-Offs

Employers must obtain prior permission from the appropriate Government for laying off workers, except in specific cases such as shortages of power or natural calamities.

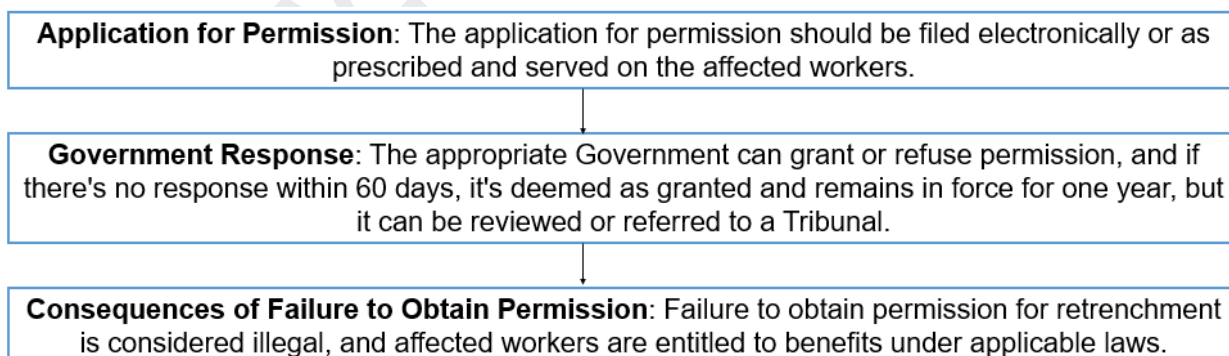


Exceptional circumstances may lead to a temporary exemption from these provisions, and alternative employment should be offered to laid-off workers if possible.

SECTION 79: Conditions and Procedures for Retrenchment

Employers must obtain prior permission from the appropriate Government for retrenching workers who have been in continuous service for at least one year, except in specific cases.

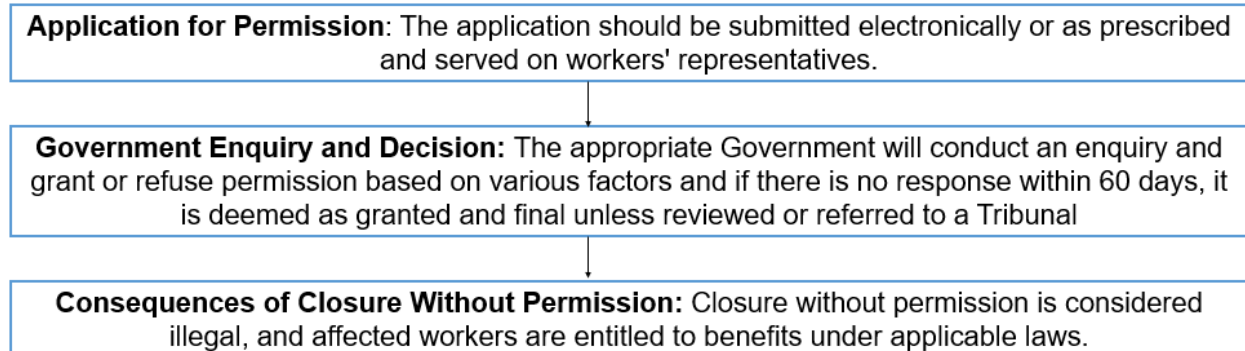
The worker should be given **a three month's notice** in writing giving reasons for retrenchment and either notice period should expire or worker has to be paid wages for the period of notice.



Exceptional circumstances may lead to a temporary exemption from these provisions. Workers are entitled to compensation at the time of retrenchment based on their continuous service.

SECTION 80: Procedures and Conditions for Closure of Industrial Establishment

Employers must apply for prior permission from the appropriate Government at least ninety days before the intended closure date.



Exceptional circumstances may lead to temporary exemptions and workers are entitled to compensation at the time of closure based on their continuous service.

SECTION 81: Duty of an Employer to maintain muster rolls of workers

Employers in industrial establishments **must keep a muster roll and record entries** for workers who show up for work during normal hours, even if they have been laid off. This helps maintain **accurate records during periods of layoffs**.

Worker Re-skilling Fund (Ch XI)

SECTION 83- Worker re-skilling fund

- The appropriate Government is required to establish a fund known as the **"worker re-skilling fund."**
- This fund consists of contributions from employers, equivalent to **fifteen days' wages** of the retrenched worker, and contributions from other specified sources.
- The fund is intended to be utilized to credit fifteen days' wages to the account of a retrenched worker **within forty-five days of their retrenchment**, as prescribed.

Unfair Trade Practices (Ch XII)

SECTION 84 – Prohibition of Unfair Labour Practices

No one, whether employer, worker, or Trade Union, whether registered under this Code or not, may engage in unfair labor practices listed in the Second Schedule.

Offences and Penalties (Ch XIII)

SECTION 85 – Power of officers of Appropriate Government to impose penalty in certain cases

- **Inquiry and Penalties** : The appropriate Government can appoint an officer, not below the rank of **Under Secretary to the Government of India** or an equivalent State

Government officer, to hold an inquiry for imposing penalties under specific sections of this Code.

- **Inquiry Process:** During the inquiry, this officer can summon individuals and request documents relevant to the case.
- **Penalty Imposition :** If the person is found guilty of an offense under the mentioned sections, the officer can impose an appropriate penalty.
- **Fine for Non-Payment :** If the penalty is not **paid within ninety days** of receiving the order, the person may be fined, **with the fine ranging from fifty thousand rupees to two lakh rupees.**

SECTION 86

Offense or Violation	First Offense
Section 78(Layoff), 79 (Retrenchment), and 80 (closing down of certain establishments) Violations	Fine: 1 - 10 lakh rupees Subsequent offence - Fine: 5 - 20 lakh rupees, or Imprisonment up to 6 months, or both
Section 67, 70, 73, and 75 Violations	Fine: 50,000 - 2 lakh rupees Subsequent offence - Fine: 1 - 5 lakh rupees, or Imprisonment up to 6 months, or both
Unfair Labor Practices (Second Schedule)	Fine: 10,000 - 2 lakh rupees Subsequent offence - Fine: 50,000 - 5 lakh rupees, or Imprisonment up to 3 months, or both
Default in Trade Union Notices, Statements, etc.	Fine: 1,000 - 10,000 rupees, plus 50 rupees per day for continuing default
False Entry in Documents (Section 26, Rules, etc.)	Fine: 2,000 - 20,000 rupees
Misrepresentation of Trade Union Rules	Fine: 5,000 - 20,000 rupees
Draft Standing Orders Violations	Fine: 50,000 - 2 lakh rupees, plus 2,000 rupees per day for continuing offense Subsequent offence - Fine: 1 - 2 lakh rupees
Continuing Offense for Standing Orders (Section 35)	2,000 rupees per day until the offense continues
Breach of Standing Orders (Section 30)	Fine: 50,000 - 2 lakh rupees
Continuing Offense for Closure Violation	2,000 rupees per day until the offense continues
Strike Commencement or Actions (Illegal)	Fine: 1,000 - 10,000 rupees, or Imprisonment up to 1 month, or both
Lock-Out Commencement or Actions (Illegal)	Fine: 50,000 - 1 lakh rupees, or Imprisonment up to 1 month, or both
Instigating or Inciting Strike or Lock-Out (Illegal)	Fine: 10,000 - 50,000 rupees, or Imprisonment up to 1 month, or both
Supporting Illegal Strike or Lock-Out (Financially)	Fine: 10,000 - 50,000 rupees, or Imprisonment up to 1 month, or both
Breach of Settlement or Award Terms	Fine: 20,000 - 2 lakh rupees, plus additional fine for continuing offenses
Wilful Disclosure of Confidential Information (Section 61)	Fine: Not exceeding 20,000 rupees, or Imprisonment up to 1 month, or both
Other Violations of the Code or Rules/Regulations	Fine: Not exceeding 1 lakh rupees

SECTION 87 – Cognizance of Offences

Legal proceedings for offenses under the code can only be initiated through a complaint from **the appropriate Government**. Additionally, it specifies that such cases must be tried in courts with jurisdiction, namely Metropolitan Magistrates or Judicial Magistrates of the first class

SECTION 89 – Composition of Offences

- **Compounding of Offenses:** This Section allows for the compounding of certain offenses under the code.
- **Application for Compounding:** An accused person can apply for compounding either before or after the institution of prosecution, subject to prescribed conditions.
- **Compounding Amount:** The compounding sum is typically:
 - 50% of the maximum fine for offenses punishable with a fine only
 - 75% for offenses punishable with imprisonment for up to one year or with a fine
- **Utilization of Compounding Amount:** The compounding amount is credited to the **Social Security Fund**.
- **Exclusions:** The provision doesn't apply to **repeat offenders** or those previously convicted **for similar offenses within three years**.
- **Authority for Compounding:** The power to compound offenses is exercised by specified officers under the supervision of the appropriate government.

Miscellaneous

SECTION 90 – Conditions of Service, etc to remain unchanged under certain circumstances during pendency of proceedings

- **Prohibition on Detrimental Changes:** Employers are prohibited from making detrimental changes to workers' conditions or punishing them for dispute-related misconduct without written permission from the dispute-handling authority.
- **Permission for Unrelated Conditions or Non-Dispute Misconduct:** Employers can modify unrelated conditions or act against workers for non-dispute-related misconduct, subject to paying one month's wages and seeking approval.
- **Protection for "Protected Workers":** The section also protects "protected workers," typically union executives, from adverse actions during disputes.
- **Determination of "Protected Workers":** The number of protected workers is determined as **one percent of the workforce, with a minimum of five and a maximum of one hundred**.

SECTION 91 – Special provision for adjudication as to whether conditions of service, etc., changed during pendency of proceedings.

Under this Section, if an employer violates Section 90 during ongoing dispute proceedings, affected employees can file a written complaint. This complaint is submitted to the respective authority overseeing the dispute process, such as a conciliation officer or arbitrator. The

authority treats the complaint like a pending dispute, adjudicates it, and submits an award to the appropriate Government, with the Labor Code's provisions applying.

SECTION 93 – Protection of persons

This Code ensures that **no person who refuses to participate** in or continue a strike or lock-out that is illegal under the code will face any adverse consequences such as expulsion from a Trade Union or society, fines, penalties, or loss of rights and benefits.

SECTION 94 – Representation of parties

This section dictates rules for representation in labor disputes.

Workers can be represented by

- ✓ any member of the executive or other office-bearer of a registered Trade Union of which he is a member;
- ✓ any member of the executive or other office-bearer of a federation of Trade Unions to which the Trade Union referred to is affiliated;
- ✓ where the worker is not a member of any Trade Union, any member of the executive or other office-bearer of any Trade Union, or by any other worker employed in the industry

Employers can be represented by

- ✓ association officers or
- ✓ an officer of a federation of associations of employers to which the association is affiliated
- ✓ Authorized person in the industry

Legal practitioners are generally not allowed in conciliation proceedings but may be permitted in Tribunal proceedings with consent.

SECTION 95 – Removal of doubt in interpretation of award or settlement

Allow the appropriate Government to refer any doubts or difficulties regarding the interpretation of an award or settlement to a designated Tribunal or National Industrial Tribunal. After hearing the concerned parties, the Tribunal's decision on the matter is considered final and binding.

SECTION 96 – Power to exempt

- **Exemption Authority:** Section 96 grants the appropriate Government the power to grant exemptions to industrial establishments or undertakings.
- **Public Interest Exemption:** The Government can also exempt new industrial establishments or undertakings from specific Code provisions if it deems it necessary in the public interest. This exemption is valid for a specified period from the establishment date.

SECTION 97 – Jurisdiction of Civil Courts barred

Civil courts have no jurisdiction over matters governed by this Code, and they cannot issue injunctions related to actions taken under it.

SECTION 99 – Appropriate Government has the power to make rules for the purpose of giving effect to the provisions of this Code

SECTION 101 – Power to amend schedules

- The Central Government can modify or amend the **First Schedule, Second Schedule, or Third Schedule** through a notification. Such notifications are subject to parliamentary review. If both Houses of Parliament agree on a modification, it takes effect accordingly, but **if they agree on annulment, the notification becomes void**, while prior actions under it remain valid.

SECTION 103 – Central Government has the power to remove difficulties up to a period of 3 years

Schedules

Schedule	Details
First Schedule	Matters to be provided in Standing Orders under this Code
Second Schedule	Unfair Labour Practices I. On the part of Employers and Trade Unions of Employers II. On the part of Workers and Trade Unions of Workers
Third Schedule	Conditions of Service for change of which notice is to be given